

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01810
CASE NAME: AIM BUSINESS CAPITAL, LLC VS. MARK WOOLDRIDGE
***HEARING ON MOTION IN RE: DETERMINE GOOD FAITH OF SETTLEMENT**
FILED BY: CREATIVE FINE FOODS, LLC
TENTATIVE RULING:

The hearing on this Motion is **vacated**. The Court entered an Order Determining Good Faith Settlement on November 14, 2025. No appearance is required at this hearing.

3. 9:00 AM CASE NUMBER: C23-00279
CASE NAME: ATCHISON VILLAGE VS. MANDEL
***HEARING ON MOTION IN RE: ATTORNEYS' FEES**
FILED BY: MANDEL, PHYLLIS
TENTATIVE RULING:

Summary

The Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

Background

On February 7, 2023, Atchison Village ("Plaintiff") filed this case against Phyllis Mandel ("Defendant"), alleging that she caused leak by allowing her bathtub to overflow, damaging certain common property of the Plaintiff, in or around January 2020. Plaintiff claims that Defendant allowed the water to build up in the bathtub and accumulate across the bathroom floor causing a causing [sic] water damage." (Complaint, ¶ 13.) Defendants claim that Plaintiff fabricated these claims, with the knowledge that the video evidence of the alleged bathtub overflow in its possession was from an unrelated event that occurred in 2019.

Plaintiff alleged that Defendant's failure pay for the repairs "demonstrates her bad faith intent to uphold the commitment she has with Plaintiff and members of the community." Defendant also claims that Plaintiff attempted to intimidate her by threatening to terminate her membership in Atchison Village, which would be the equivalent of foreclosing/evicting her—an elderly woman—from her home that she has resided in for more than twenty years. (Complaint, ¶ 23.) (Etemadi Decl., ¶¶ 8-8; Mandel Decl., ¶ 9.).

After this Court granted Defendant's discovery motions on May 21, 2025, Plaintiff dismissed its case on June 6, 2025. The Request for Dismissal was entered on the same day, June 6, 2025.

On August 6, 2025, Defendant Phyllis Mandel (Defendant), by and through her counsel, MBK Chapman PC, filed a Motion for Attorney's Fees seeking \$94,218.32, supported by a Memorandum of Points and Authorities, Declarations of Jason K. Boss, Jessica Grazul, Sara Etemadi, Karla Garcia and Phyllis Mandel ("Motion"). The Motion was also accompanied by a Notice and Amended Notice, filed on August 13, 2025. Defendant claims that she was improperly sued in this case as a Defendant, and is now the prevailing party in this action within the meaning of Code of Civil Procedure sections 1032(a)(4) and 1033.5(a)(10(A), as well as under the express terms of Section 15 of the Mutual Ownership Contract between Atchison Village and Ms. Mandel, (below) which provides for an award

of “attorneys’ fees and costs actually incurred” to the prevailing party in any legal proceeding instituted to enforce any provision of that agreement.

Defendant claims that she achieved her sole litigation objective by obtaining a complete dismissal of all claims brought against her by Atchison Village without any finding of liability or payment of any kind (including the non-contract claim of negligence alleged by Atchison Village) and is therefore entitled to recover her attorneys’ fees and costs incurred in defending this action.

Plaintiff filed its opposition on October 13, 2025, claiming several arguments: (1) That the language of the attorney’s fees provision is insufficiently broad to include tort claims; (2) The provision requires a party to have been found “at fault”; and (3) Even if Defendant is entitled to fees in defending the tort action, she would have to separate those from fees to which she is not entitled.

Analyses

Prevailing Party Attorney’s Fees

The Court finds that Defendant is entitled to an award of attorneys’ fees as the prevailing party pursuant to the parties’ contractual agreement. Under Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), attorneys’ fees are recoverable when authorized by contract. Further, Code of Civil Procedure section 1032, subdivision (a)(4), defines a “prevailing party” to include “a defendant in whose favor a dismissal is entered” and “a defendant as against those plaintiffs who do not recover any relief against that defendant.”

It is well established that a trial court retains jurisdiction to award attorneys’ fees notwithstanding a voluntary dismissal. (*Mesa Shopping Center-East, LLC v. O Hill* (2014) 232 Cal.App.4th 890, 898, citing *Gogri v. Jack in the Box Inc.* (2008) 166 Cal.App.4th 255, 261 [“In addition to retaining jurisdiction to vacate an untimely voluntary dismissal, trial courts retain jurisdiction to award attorney fees and costs following a voluntary dismissal.”].) Although Plaintiff voluntarily dismissed Defendant, such dismissal without prejudice does not preclude an award of contractual fees when the action includes non-contractual claims and the fee clause extends beyond breach of contract. (*Santisas v. Goodin* (1998) 17 Cal.App.4th 599, 617.)

Here, Paragraph 15 of the Atchison Village Mutual Homes Corporation Mutual Ownership Contract governs the parties’ entitlement to fees. (“Paragraph 15”) That provision states:

15. Legal Expenses and Attorney’s Fees

If legal proceedings must be instituted to enforce any provision of this agreement, or for the possession of the premises, the party found to be at fault shall pay all expenses of the prevailing party, including reasonable attorney’s fees and costs actually incurred.

Applying these principles, the Court finds Defendant’s position persuasive. Plaintiff cannot avoid the operation of Code of Civil Procedure section 1032, subdivision (a)(4), by urging a narrow interpretation of the contractual language that would undermine the statute’s purpose. Section 1032, by itself, expressly authorizes a fee award to “a defendant in whose favor a dismissal is entered.” If a conflict exists between a statute and a contractual provision, the statute controls. To construe

Paragraph 15 as requiring a judicial finding of fault before determining prevailing-party status would impermissibly impose a condition not contemplated by section 1032 and would defeat the Legislature's intent. Defendant cites no authority permitting a private ownership agreement to restrict or circumvent the statutory definition of a prevailing party. The only showing required is that Defendant achieved her sole litigation objective—the dismissal of the action—and that "Plaintiffs did not recover any relief against that defendant." She has done this.

Finally, the Court notes that Plaintiff invoked Paragraph 15 in the initial complaint to seek attorneys' fees against Defendant arising from the alleged flood incident, yet now argues that the same provision is inapplicable when asserted by Defendant. This inconsistent position further supports the conclusion that Defendant is the prevailing party for purposes of a fee award.

Plaintiff further argues that the attorney's fees language in Paragraph 15 is not broad enough to cover tort claims under *Khan v. Shim* (2017) 7 Cal.App.5th 49, 56-57 and that Defendant does not separate fees incurred in defending the tort claim from those incurred in the contract claim. This argument, taken as a whole, is not persuasive. The incident alleged to have occurred in 2020 serves as the factual basis for both the breach of contract and negligence claim asserted by Plaintiff. It follows that since both causes of action arise from the single occurrence, it would be disingenuous for Plaintiff to demand that Defendant separate the time billed for this single occurrence precisely to each specific cause of action.

Based on the foregoing, the Court finds that Defendant is the prevailing party under Cal. Code of Civ. Proc. § 1032(a)(4) and is entitled to fees and costs for defending this breach of contract and negligence case.

Reasonableness of Fees

The determination of what constitutes reasonable attorneys' fees is committed to the sound discretion of the court. *Westside Community for Independent Living, Inc. v. Obledo*, (1983) 33 Cal.3d 348, 355. "An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court." *Wershba v. Apple Computers, Inc.*, (2001) 91 Cal.App.4th 224, 255; see also *Melnyk v. Robledo*, (1976) 64 Cal.App.3d 618, 623. Thus, the award usually has to shock the conscience to be overturned. *In re Tobacco Cases I*, (2013) 218 Cal.App.4th 570, 587; see also *Raining Data Corp. v. Barrenechea*, (2009) 175 Cal.App.4th 1363, 1375 ("A trial court's attorney fee award will not be set aside 'absent a showing that it is manifestly excessive in the circumstances.'"); *Akins v. Enter. Rent-A-Car Co.*, (2000) 79 Cal.App.4th 1127, 1134.

Here, Defendant seeks \$94,218.32 in attorney's fees, which includes \$1,143.48 in costs representing 312 hours of work invested in this litigation. These fees and costs include \$10,140 for prosecuting this Motion, \$84,078.32 in defending this case from the onset, and costs.

In reviewing the declarations submitted by her counsel, the Court notes that while the hourly rates charged by Defendant's attorneys appear to be commensurate with their level of experience pursuant to the *Lodestar* factors, and the market factors as reported in the Clio's 2024 Legal Trends data, the Court notes that the litigation may have encountered certain inefficiencies where five (5) attorneys and two paralegals from the same firm billed this file throughout this lengthy litigation. When

reviewing the rates in terms of their reasonableness, the Court finds that a twenty-five percent (25%) downward adjustment is warranted (-\$23,268.63), given the inefficiencies. The Court finds that attorney's fees in the amount of \$69,805.89, plus costs in the amount of \$1,143.48, for a total award of \$70,949.37, is reasonable.

After reviewing the papers submitted by counsel, and considering the applicable statutory and decisional authorities, the Court finds that there is good cause to grant Defendant's Motion.

Ruling

Good cause therefore appearing, the Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

1. Plaintiff shall pay Defendant's attorney's fees in the amount of \$69,805.89
2. Plaintiff shall reimburse Defendant's costs in the amount of \$1,143.48 pursuant to its memorandum of costs filed on June 16, 2025. No other costs and fees are awarded.
3. Payments are due within thirty (30) days from the date of this order, or pursuant to a payment plan negotiated by the Parties, and presented to this Court in the form of a stipulation and proposed order. Absent this stipulation and proposed order, payments are due in thirty days.
4. Defendant is ordered to prepare and e-file a conforming order, approved as to form by Plaintiff, no later than ten (10) days from the date of this hearing.

**4. 9:00 AM CASE NUMBER: C23-01810
CASE NAME: KEVIN HUMPHREY VS. JASVIR SINGH SHAHI
HEARING ON SUMMARY MOTION
FILED BY: DILLARD TRUCKING, INC.
*TENTATIVE RULING:***

This hearing continued, *sua sponte*, to December 17, 2025 at 9:00 a.m in Department 16.

**5. 9:00 AM CASE NUMBER: C23-02459
CASE NAME: KYLE GARDNER VS. MARIO MADRIGAL
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT'S
RESPONSES TO REQUEST FOR ADMISSIONS, SET TWO AND CORRESPONDING FORM
INTERROGATORIES, SET TWO
FILED BY: GARDNER, KYLE R.
*TENTATIVE RULING:***

Summary

Plaintiff's Motion to Compel Further Responses to Request for Admissions, Set Two and Further Responses to Form Interrogatory No. 17.1, Set Two, is **granted** in part and **denied** in part as set forth herein.

Background

In this action, Plaintiff Kyle Gardner ("Plaintiff") alleges that he sustained personal injuries arising out